

20CV369927, which we will refer to as the “Underlying Case”, filed by Chan against Zhong in Santa Clara County Superior Court on August 26, 2020. (FAC, ¶ 1.) The Underlying Case asserted claims for breach of contract, fraud, and common counts. (*Id.* at ¶ 4.) On January 11, 2021, Chan filed a Proof of Service on Zhong in the Underlying Case (the “Proof of Service”) and, on that same date, Chan filed a request for entry of default and judgment in the amount of \$57,560.95 plus interest, which was thereafter entered against Zhong (“Default Judgment”) in the Underlying Case. (*Id.* at ¶ 5.)

In his FAC in this Case No. 23CV424913, Zhong asserts that the Default Judgment is void on its face for lack of personal jurisdiction because Chan failed to comply with due process because he never served Zhong in the Underlying Case. (FAC, ¶¶ 6-7.) While the Proof of Service indicated Zhong was served on December 8, 2020, Zhong now claims that Zhong was not the person who was served. (*Id.* at ¶ 8, Ex. A.)

On April 19, 2022, Zhong received a letter from his bank notifying him of a required withdrawal due to a legal order in the amount of \$58,315.29. (FAC, ¶ 9.) Zhong was not aware of any legal order against him. (*Ibid.*) Zhong asserts that the Default Judgment failed to comply with due process requirements because he was not the actual person served. (*Id.* at ¶¶ 11-14.) Zhong asserts that the probability of Chan obtaining judgment against him on the merits would be unlikely. (*Id.* at ¶¶ 15-25.)

In this Case No. 23CV424913, Zhong now seeks to adjudicate that the Default Judgment against him in the Underlying Case is void because he was never served with process in accordance with the law.

On November 24, 2025, Chan in this Case No. 23CV424913 filed this Motion for Summary Judgment or, in the alternative, Summary Adjudication under Code of Civil Procedure section 437c. Zhong opposes the Motion.

I. Legal Standard on Motion for Summary Judgment or Summary Adjudication

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the